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Tarell Daniels v. 745-747 Venice Way, et al.

(1) DEMURRER TO COMPLAINT

(2) MOTION TO STRIKE

MOVING PARTY: Defendant 745-747 Venice Way

RESPONDING PARTY(S): Plaintiff Tarell Daniels

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a habitability action. Plaintiff Tarell Daniels (Plaintiff) brings this action against his landlord and property management company defendant 745-747 Venice Way (sued, incorrectly, as L and P Assoc.) and Beach Front Property Management, Inc. Plaintiff brings causes of action for: (1) violation of Civil Code section 1942.4; (2) tortious breach of the warranty of habitability; (3) private nuisance; (4) Business And Professions Code § 17200, et seq.; (5) negligence; (6) breach of covenant of quiet enjoyment; (7) intentional infliction of emotional distress; (8) negligence per se; (9) violation of Consumer Legal Remedies Act, California Civil Code § 1750, et seq.; (10) unjust enrichment; (11) fraud and deceit; (12) intentional influence to vacate; (13) trespassing; and (14) violation of Inglewood Municipal Code § 8-125, et seq.

Defendant 745-747 Venice Way (Defendant) now demurs to the fourth, ninth, tenth, eleventh and twelfth cause of action in the complaint and moves to strike portions within. Plaintiff opposed.

TENTATIVE RULING:

Defendant's Demurrer is SUSTAINED IN ITS ENTIRETY.

Defendant's Motion to Strike is GRANTED.

Plaintiff's Ninth Cause of Action for Violation of Consumer Legal Remedies Act is SUSTAINED WITHOUT LEAVE TO AMEND. Whether leave to amend is granted on all other causes of action will depend on whether Plaintiff can make an

adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Moving party is ordered to give notice, unless waived.

DISCUSSION:

Demurrer to Complaint

I. Meet and Confer

The Declaration of attorney Brittany L. Safar does not reflect that the meet and confer requirement was satisfied. The Safar Declaration only attests to email conversations with no telephonic meet and confer taking place. This is insufficient to satisfy the requirements to meet either telephonically or in person as required by Code of Civil Procedure, section 430.41. However, in the interest of judicial economy, the Court exercises its discretion to address the motion on its merits. The parties are admonished to comply with all meet and confer obligations going forward.

II. Improper Opposition

Plaintiff's opposition to the demurrer and opposition to the motion to strike are each 21 pages long and neither include page numbers. (See Cal. Rule of Court, Rule 3.1113(d) and (h).) Plaintiff did not seek ex-parte relief to submit a longer opposition. (See Cal. Rule of Court, Rule 3.1113(e).) Plaintiff's oppositions do not contain a table of contents nor a table of authority. (See Cal. Rule of Court, Rule 3.1113(f).)

This is the second consecutive motion in which Plaintiff has failed to comply with California Rules of Court. Nevertheless, its discretion, the Court considers this improperly filed opposition. Plaintiff is admonished to comply with all Rules of Court going forward. The next violation of this type will result in either this Court completely disregarding the pleading and/or issuing monetary sanctions against Plaintiff's counsel.

III. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

IV. Analysis

Defendant now demurs to the fourth, ninth, tenth, eleventh and twelfth cause of action in the complaint.

As an initial note, the Court OVERRULES Defendant's demurrer for uncertainty on the grounds that (a) demurrers for uncertainty are disfavored and should only be sustained where the complaint is so uncertain that the demurring defendant cannot reasonably respond thereto (see, e.g., *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616); and (b) here, Plaintiff's complaint is not so uncertain that Defendant cannot reasonably respond thereto. Moreover, even if the pleading is somewhat vague, "ambiguities can be clarified under modern discovery procedures." (*Ibid.*)

The Court addresses each cause of action in turn.

A. Fourth Cause of Action (Violation of Business and Professions Code Section 17200)

Business and Professions Code, section 17200 prohibits "any unlawful, unfair or fraudulent business act or practice." (Bus. & Prof. Code § 17200; see *Clark v. Superior Court* (2010) 50 Cal.4th 605, 610.) A violation of other laws is deemed independently actionable under the UCL. (See *Law Offices of Mathew Higbee v. Expungement Assistance Services* (2013) 214 Cal.App.4th 544, 554.) "Virtually any law, federal, state or local, can serve as a predicate for a section 17200 action." (*Ibid.* (quoting *Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1335).) To establish a fraudulent practice under the UCL, the plaintiff must show that members of the public are likely to be deceived. (See *West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 806.) "A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits." (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1473.) Further, statutory claims must be pled with particularity. (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410.) A cause of action for unfair competition "is not an all-purpose substitute for a tort or contract action." (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 173.)

Here, Plaintiffs allege, "Defendants violated Business and Professions Code § 17200, et seq., by engaging in unlawful, unfair, and fraudulent business practices through their persistent neglect of essential repairs and failure to address hazardous living conditions at the Subject Property." (Compl. ¶126.)

These allegations are deficient. All violations are merely restatements of prior tort causes of action. Plaintiff is attempting to use this cause of action as a "all-purpose substitute for a tort or contract action" instead of alleging an independent cause of action. (*Cortez v. Purolator Air Filtration Products Co.*, supra, 23 Cal.4th at p. 173.) Therefore, the complaint does not allege sufficient facts to support a cause of action for violation of Business and Professions Code, section 17200.

Accordingly, Defendant's demurer to the fourth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

B. Ninth Cause of Action (Violation of Consumer Legal Remedies Act, California Civil Code § 1750, et seq.)

The CLRA, which is codified in Civ. Code §§ 1750-1784, protects individuals engaging in consumer transactions. It prohibits "unfair methods of competition and unfair or deceptive acts or practices undertaken by any person in a transaction intended to result or which results in the sale or lease of goods or services to any consumer." (Civ. Code § 1770(a).) It sets forth 27 different "unfair or deceptive acts or practices" that may constitute a violation of the act. (*Ibid.*) In assessing whether the representations made in the course of the consumer transaction violate the CLRA, courts use the reasonable consumer standard—i.e., whether a reasonable consumer would be misled by the representation. (*Consumer Advocates v. Echostar Satellite Corp.* (2003) 113 Cal.App.4th 1351, 1360.) "The CLRA declares unlawful a variety of "unfair methods of competition and unfair or deceptive acts or practices" used in the sale or lease of goods or services to a consumer." (*Bower v. AT&T Mobility, LLC* (2011) 196 Cal.App.4th 1545, 1556.) The Act defines "goods" to mean the following:

tangible chattels bought or leased for use primarily for personal, family, or household purposes, including certificates or coupons exchangeable for these goods, and including goods that, at the time of the sale or subsequently, are to be so affixed to real property as to become a part of real property, whether or not they are severable from the real property.

(Civ. Code § 1761, subd. (a).)

Services, meanwhile are defined as “work, labor, and services for other than a commercial or business use, including services furnished in connection with the sale or repair of goods.” (Civ. Code § 1761, subd. (b).)

An apartment is real property, not a tangible chattel. Accordingly, an apartment is not a good or a service within the meaning of the CLRA. If the Legislature had intended the CLRA to apply to residential leases, it would not have limited its scope to a lease of “goods or services”; it would have defined a consumer as an individual who leases “property or services.” Although the landlord did have statutory duties of maintenance, as well as a duty of maintenance arising out of the warranty of habitability (7 Miller & Starr, Cal. Real Estate (3d ed.2004) § 19:116), these were merely incidents of the landlord-tenant relationship; they did not change the fundamental nature of the lease.

Accordingly, Defendant’s demurer to the ninth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

C. Tenth Cause of Action (Unjust Enrichment)

Strictly speaking, there is no cause of action for unjust enrichment; rather, unjust enrichment is a basis for obtaining restitution based on quasi-contract or imposition of a constructive trust. (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1490.) Nevertheless, one can plead and prove a cause of action based on a theory of unjust enrichment. (See, e.g., Ghirardo v. Antoniolì (1996) 14 Cal.4th 39, 44.) “The elements for a claim of unjust enrichment are receipt of a benefit and unjust retention of the benefit at the expense of another. The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained, to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched.” (Lyles v. Sangadeo-Patel (2014) 225 Cal.App.4th 759, 769, quotation marks and citations omitted.)

However, a quasi-contract cannot lie where the cause of action is based upon an express contract. (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 231 (Rutherford).) “[A]s a matter of law, a quasi-contract action for unjust enrichment does not lie where, as here, express binding agreements exist and define the parties’ rights.” (California Medical Ass’n, Inc. v. Aetna U.S. Healthcare of California, Inc. (2001) 94 Cal.App.4th 151, 172; see also Wal-Noon Corp. v. Hill (1975) 45 Cal.App.3d 605, 650) In Rutherford, the Court of Appeal explained:

“[A]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” [Citation.] However, “restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason.” [Citation.] Thus, a party to an express contract can assert a claim for restitution based on unjust enrichment by “alleg[ing] in that cause of action] that the express contract is void or was rescinded.” [Citation.] A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement. [Citation.]

(Rutherford, supra, 223 Cal.App.4th at p. 231.)

Here, Plaintiff alleges:

The Defendant received a benefit at the Plaintiff's expense. The Defendants engaged in unfair business practices, breached the Plaintiff and Defendant's contract, breached the implied covenant of good faith and fair dealing, breached the covenant of quiet enjoyment, inflicted emotional distress upon the Plaintiff, engaged in fraud and deceit and concealment, during the Defendants' ownership and management of the Subject Property, as alleged herein, all while the Plaintiff continued to pay rent on the Subject Property. As a result, the value of the leasehold held by the Plaintiff has been materially diminished. Despite this diminishing, the Plaintiff continued to pay full and complete rent payments. As a result, the Defendants have been unjustly enriched at the expense of Plaintiff, who paid the rent in full.

(Compl. ¶192.)

Here, the right to payment arises out of the breach of the implied warranty of habitability in the lease contract. However, Plaintiff does not allege that the lease agreement is void, rescinded, or other facts to indicate that the agreement is unenforceable or ineffective for some reason, even as an alternate claim to the causes of action for breach of duties under the lease agreement. As such, the unjust enrichment cause of action is deficient. (See *Rutherford*, supra, 223 Cal.App.4th at p. 231.)

Accordingly, Defendant's demurer to the tenth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

D. Eleventh Cause of Action (Fraud and Deceit)

The elements of fraud are: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 184.) In California, fraud, including negligent misrepresentation, must be pled with specificity. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) "The particularity demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered." (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469.)

Here, Plaintiff does not meet this heightened pleading requirement. In support of Plaintiff's eleventh cause of action, Plaintiff alleges: "Defendants engaged in fraud and deceit by deliberately misrepresenting and omitting critical information about the condition of the Subject Property." (Compl. ¶197; see also Compl. ¶¶198-200.) Plaintiff never alleges any statements in the complaint attributable to any entity. Plaintiff put forth insufficient factual allegations to sustain a cause of action, let alone with sufficient factual allegations to meet the heightened pleading standards required to sustain a cause of action for fraud.

Accordingly, Defendant's demurer to the eleventh cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

E. Twelfth Cause of Action (Intentional Influence to Vacate)

The Court is unaware of any cause of action entitled "Intentional Influence to Vacate." In opposition, Plaintiff states that this cause of action is, in reality, a cause of action for violation of Civil Code, section 1940.2. (See Opp. at p. 19/22.) Indeed, the cause of action appears to copy and paste portions of Civil Code, section 1940.2. This court is aware of its duty to read the allegations liberally and in context (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228) and to "emphasiz[e] substance over form." (Ameron Internat. Corp. v. Insurance Co. of State of Pennsylvania (2010) 50 Cal.4th 1370, 1386.) Therefore, the Court treats this cause of action as a violation of Civil Code, section 1940.2.

Section 1940.2 prohibits a landlord from, inter alia, using or threatening to use "force, willful threats, or menacing conduct constituting a course of conduct that interferes with the tenant's quiet enjoyment of the premises in violation of Section 1927 that would create an apprehension of harm in a reasonable person." (Civ. Code § 1940.2(a)(3).) An oral or written warning notice given in good faith regarding an actual or potential violation of a rental agreement or law is not a violation of section 1940.2. (Id. subd. (c).)

Here, Plaintiff does not allege any facts to support this cause of action. Plaintiff alleges that "Plaintiff is informed and believes and thereon alleges Defendants engaged in a pattern and practice of conduct, including unauthorized entries into the Subject Property without consent, leaving intimidating notices in plain view, and making verbal threats aimed at coercing the Plaintiff to vacate the premises." (Compl. ¶211.) Here, this allegation is insufficient. First, Plaintiff does not allege force, willful threats, or menacing conduct against himself. He merely indicates that he is "informed and believes and thereon alleges Defendants engaged in a pattern and practice of conduct." (Compl. ¶211, emphasis added.) "A'[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.'" (Gomes v. Countrywide Home Loans, Inc. (2011) 192 Cal.App.4th 1149, 1158-1159.) As written, Plaintiff does not have personal knowledge of these actions. Therefore, even taking these actions as true, these actions did not occur against Plaintiff, but rather a third party that Plaintiff has information about. Plaintiff makes no allegations that these actions were directed at him or that he experienced the repercussions of such actions at all. Accordingly, Plaintiff's cause of action fails to allege sufficient facts to plead a cause of action for a breach of Section 1940.2.

Further, Civil Code, section 1940.2 only applies when a landlord acts "for the purpose of influencing a tenant to vacate a dwelling." (Civ. Code, § 1940.2, subd. (a).) The complaint does not allege ultimate facts that Defendant's conduct was motivated by the purpose of influencing him to vacate the apartment. Instead, Plaintiff alleges "Defendants sought to interfere with the Plaintiff's quiet enjoyment of the premises, leaving the Plaintiff in constant fear of retaliatory actions." (Compl. ¶211.) While it is alleged Defendant acted with an improper purpose, it does not allege that the motive was for the purpose of influencing Plaintiff to vacate.

Accordingly, Defendant's demurer to the twelfth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Motion to Strike

I. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro § 436.)

II. Analysis

Defendant seeks to strike Plaintiff's request for punitive damages throughout the complaint. Here, Plaintiff has failed to plead sufficient factual allegations entitling them to punitive damages.

Civil Code § 3294 provides that "[i]n an action for the breach of an obligation not arising from contract where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant."

As defined in section 3294(c):

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means that a defendant intentionally misrepresented or concealed a material fact and did so intended to harm a plaintiff.

Additionally, "when the defendant is a corporation, '[a]n award of punitive damages against a corporation ... must rest on the malice of the corporation's employees. But the law does not impute every employee's malice to the corporation.' [Citation.] Instead, the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation. (Civ.Code, § 3294, subd. (b).)" (Wilson v. S. California Edison Co. (2015) 234 Cal. App. 4th 123, 164.)

Here, Plaintiffs allege that Defendants failed to remedy issues at the property despite being on notice of same. However, beyond the general allegations that Defendants were on notice of the defects and failed to remedy them, Plaintiff has failed to allege the ultimate facts necessary to show the requisite malice, oppression, or fraud necessary to seek punitive damages.

Accordingly, Defendant's motion to strike is GRANTED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Concluding Observations re: Over-Pleading

Last, but not least, this Court is continually frustrated by the constant over-pleading of lawsuits by plaintiffs' attorneys in habitability cases. Why assert FOURTEEN (14) causes of action in this particular case, when three or four will suffice? The separate causes of action for the habitability claims may be understandable. Why then add separate causes of action for basically the same allegations, such as nuisance, "tortious" breach of the covenant of quiet enjoyment, intentional infliction of emotional distress, etc.? Are you concerned that you will not be able to simply prove that there was a breach of habitability? Indeed.

And of course, let us not forget every plaintiff's favorite – unfair business practices! What is the "restitution" you will be requesting in addition to the damages already covered by the other causes of action? What is the restraining order you will be seeking? "Don't rent inhabitable premises"? [FN 1]

Last, but not least, there are redundant and/or superfluous causes of action for "negligence" and "negligence per se," as well as unjust enrichment, fraud and deceit and trespassing. Then there is the fictitious cause of action for the intentional influence to vacate, as well as the non-applicable CLRA claim.

A lawsuit's complaint should not become a law school or bar examination in which one attempts to identify every possible claim in a blue book. Suffice it to state, many of the causes of actions pled in this case are either duplicative and/or already covered by the habitability causes of action. In this case, Plaintiffs' counsel may perhaps score an "A" in a law school examination, but they get an "F" in practical civil litigation practice.

This unfortunate type of over-pleading perfectly explains where we are now. A unfortunate pleading battle with likely another round of demurrers to come. Instead of composing a SEVENTY-EIGHT (78) page Verified Complaint with fourteen causes of action, perhaps in the future counsel should consider the use of a form complaint approved by the judicial counsel and narrow it down a bit. [FN 2] At the very least, it is respectfully suggested that Plaintiffs' counsel modify its standard cut-and-paste habitability complaints accordingly.

Just food for thought.

IT IS SO ORDERED.

Dated: June 25, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1- Indeed, one should be careful for what they ask. This Court could unilaterally bifurcate the unlawful business practices cause of action, and hear it immediately, given that this is equitable in nature, and there is no right to a jury. In such an event, any rulings and or findings of fact in such a bifurcated trial could have implications to the remaining causes of action.

FN 2 - Leonardo da Vinci is quoted as saying: "Simplicity is the ultimate sophistication."